

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
April 9, 2026  
8:30 a.m./1:30 p.m.

**6. HOPE KINSMAN V. JEREMY KINSMAN**

**25FL0256**

On March 9, 2026, Respondent filed and served an Amended Request for Order (RFO) seeking a variety of orders.

Petitioner filed and served her Responsive Declaration to Request for Order on March 26<sup>th</sup>.

Respondent filed and served a Declaration on March 27<sup>th</sup>. Petitioner filed an Objection and Request to Strike on April 1<sup>st</sup>.

Petitioner objects to Section 12 and the last three paragraphs of Respondent's Declaration as these portions of the declaration improperly include statements made during settlement negotiations. The objection is sustained. The court strikes Section 12 and the last three paragraphs of Respondent's March 27<sup>th</sup> Declaration.

Respondent asks the court to review the parties' assets and make orders regarding the characterization of those assets. He further asks that the parties be ordered to correct and supplement any inaccurate or incomplete financial disclosures.

Petitioner opposes the requests in their entirety and notes that Respondent's default has been taken. Issues regarding property division are to be the subject of a prove-up hearing, not an RFO. Additionally, Petitioner notes that the original RFO requested a protective order for discovery, but the "amended" RFO makes entirely different requests and it is unclear what exactly is being requested of the court. Finally, Petitioner requests \$1,500 in sanctions pursuant to Family Code § 271 or Civil Procedure § 128.5.

Given that Respondent does not include his request for a protective order in his amended RFO, it appears the request has been dropped and therefore, the court declines to rule on it.

The parties are ordered to appear to select dates for a prove-up hearing.

The court reserves jurisdiction on Petitioner's request for sanctions until the time of the hearing.

**TENTATIVE RULING #6: PETITIONER'S OBJECTION IS SUSTAINED. THE COURT STRIKES SECTION 12 AND THE LAST THREE PARAGRAPHS OF RESPONDENT'S MARCH 27<sup>TH</sup> DECLARATION. GIVEN THAT RESPONDENT DOES NOT INCLUDE HIS REQUEST FOR A PROTECTIVE ORDER IN HIS AMENDED RFO, IT APPEARS THE REQUEST HAS BEEN DROPPED AND THEREFORE THE COURT DECLINES TO RULE ON IT.**

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**THE PARTIES ARE ORDERED TO APPEAR TO SELECT DATES FOR A PROVE-UP HEARING.**

**THE COURT RESERVES JURISDICTION ON PETITIONER'S REQUEST FOR SANCTIONS UNTIL THE TIME OF THE HEARING.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

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**7. MICHELLE MASTERS V. GUY SORBER**

**22FL0424**

On January 30, 2026, Petitioner filed a Request for Order (RFO) seeking to enforce the terms of the judgment. All required documents were served on March 10<sup>th</sup>.

Respondent has not filed a Responsive Declaration to Request for Order. Where a party fails to timely file opposition papers the court, in its discretion, may treat said failure “as an admission that the motion or other application is meritorious.” El Dorado County, Local Rule 7.10.02(C). Here, the RFO was timely and properly served on Respondent. He had notice of the pending request and chose not file an opposition. As such, the court finds good cause to treat his failure to do so as an admission that the claims made in the RFO are meritorious.

Petitioner asks that Respondent be ordered to endorse the check for the proceeds from the sale of the Tya Lane residence. Should he fail to do so within 7 days of the court’s order, Petitioner asks that the title company be ordered to reissue the check to “The Estate of Michelle Masters.”

Petitioner’s requests are granted. Respondent is ordered to endorse the check for the proceeds from the sale of the Tya Lane residence to “The Estate of Michelle Masters.” Should he fail to do so by April 16, 2026, then Petitioner may have the title company reissue the check and have it made out to “The Estate of Michelle Masters.”

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #7: PETITIONER’S REQUESTS ARE GRANTED. RESPONDENT IS ORDERED TO ENDORSE THE CHECK FOR THE PROCEEDS FROM THE SALE OF THE TYA LANE RESIDENCE TO “THE ESTATE OF MICHELLE MASTERS.” SHOULD HE FAIL TO DO SO BY APRIL 16, 2026, THEN PETITIONER MAY HAVE THE TITLE COMPANY REISSUE THE CHECK AND HAVE IT MADE OUT TO “THE ESTATE OF MICHELLE MASTERS.”**

**PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT’S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR**